

		In the eighth cause of action for account stated, plaintiff alleges that defendants owe money from previous financial transactions involving payment for health care services performed by plaintiff for the benefit of defendants and their members. (FAC, ¶ 139.) Plaintiff alleges that defendants, through their words and conduct, agreed that the amount plaintiff claimed to be due from defendants was the correct amount owed for each claim for testing. (FAC, ¶ 141.) Again, these conclusions are not supported by the allegations in the FAC. The demurrers to the fifth, sixth, seventh, and eighth causes of action are SUSTAINED with leave to amend. <i>Demurring parties to give notice.</i>
11.	Boren v. Manly, Stewart & Finaldi 25-1524761	(Off calendar)
12.	Pope v. Hyundai Motor America 25-1471444	Although there are deficiencies in Hyundai Motor America's ["HMA"] Notice of Motion for Judgment on the Pleadings, the Court construes the Motion to be one for judgment on the pleadings as to each and all causes of action of the Complaint. On that basis, the Motion is DENIED. Reading the Complaint liberally, as the Court must, plaintiff alleges two types of claims. One type is violations of <i>Civil Code</i> §1793.2 in connection with the alleged breach of contractual warranty obligations entered into by HMA. The other type is a claim that plaintiff was fraudulently induced to agree to the purchase her vehicle by fraudulent concealment of facts about its condition. Hereafter, the first type of claim will be called "the contract claims." The second type will be called "the tort claim." With respect to the contract claims, HMA makes two arguments. The first is that the claims are barred by the statute of limitations. This argument is unavailing. The statute of limitations is not an element of a cause of action. [<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807] It is an affirmative defense upon which HMA has the burden of proof. [See, <i>CACI 338</i>; <i>CACI 454</i>] In the context of this motion, HMA has the initial burden to identify the applicable SOLs. Dates alleged in a complaint may show a cause of action is barred by the statute of limitations. [<i>Iverson, Yoakum, Papiano & Hatch v. Berwald</i> (1999) 76 CA4th 990, 995, 90 CR2d 665, 669] However, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint might be time-barred. [<i>Stueve Bros. Farms, LLC v. Berger Kahni</i> (2013) 222 Cal.App. 4th 303, 313] Given the absence of both dates alleged in the Complaint and identification of specific statutes of limitations, the clear and affirmative standard has not been met. The second argument is that plaintiff has not met the enhanced standard for pleading statutory claims. HMA cites cases standing for the proposition that that allegations that do not meet the enhanced pleading